

Shri H.C. Shukla v. KESCO

High Court of Judicature at Allahabad · Division Bench · 5 January 2016 · WRIT - C No. - 70090 of 2009 · **Writ dismissed with liberty to Electricity Ombudsman under clause 7.10.**

HEADNOTE

After argument, the consumer elected the Electricity Ombudsman under clause 7.10 of the U.P. Electricity Supply Code, 2005. The High Court dismissed the writ with liberty to pursue that remedy and discharged any interim order, without deciding the underlying grievance against KESCO.

FACTUAL SUMMARY

Shri H.C. Shukla invoked the Allahabad High Court's writ jurisdiction against KESCO and another in Writ-C No. 70090 of 2009. On 22 December 2009 a Division Bench granted the respondents a month to file a counter-affidavit and the petitioner three weeks thereafter for a rejoinder. The petition remained pending and was heard at some length on 5 January 2016 by Arun Tandon and Harsh Kumar, JJ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

ombudsman-alternate-remedy

HOLDING

Where, after the writ was argued at some length, the petitioner elected to seek his remedy before the Electricity Ombudsman under clause 7.10 of the Electricity Supply Code, 2005 at the first instance, the Court dismissed the writ with liberty to pursue that remedy and discharged any interim order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S GRIEVANCE AGAINST KESCO

The Court did not examine the underlying electricity dispute once the petitioner elected the clause 7.10 Ombudsman route. ¶ 1